Galveston County District Court

Cause No. 2026-CV-0037

Christina Ellis, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	6-1-26
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant responds to the allegations in Plaintiff's Original Petition as follows. Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, the incident was caused in whole or in part by the negligence of Plaintiff, including failure to keep a proper lookout, faliure to yield the right of way, and failure to maintain a safe distance from adjacent vehicles while Plaintiff was operating a motor vehicle. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced in proportion to Plaintiff's percentage of responsibility.

Second, Defendant invokes the proportionate responsibility provisions of Chapter 33, and requests that the tirer of fact assign responsibility aomng all responsible parties, including any settling person or responsible third party designated under Section 33.004.

Third, Plaintiff failed to mitigate damages by not following reasonable medical advice, by delaying treatment, or by failing to pursue available care, and any recovery must be reduced accordingly.